COMPLAINTS HANDLING GUIDELINE

1. A licensee shall provide information about consumer complaints handling process pursuant to these Regulations.

2. A licensee shall: -
    a. establish and maintain complaint handling procedures;
    b. keep record and report of complaints handled;
    c. submit to the Authority on quarterly basis reports on consumer complaints handled and their status in a manner to be determined by the Authority.

3. Complaints handling processes shall be free of charge and shall include the following: -
    a. consumers' right for their complaint to be heard;
    b. licensee's complaints escalation process;
    c. evidence required to support the complaint;
    d. time within which a complaint shall be resolved pursuant to these Regulations;
    e. access to persons with disabilities and other special needs;
    f. appeal mechanism.

4. A consumer who is aggrieved by the licensee under this regulation shall lodge his complaint within six months.

5. Where a consumer is not satisfied with a decision reached pursuant to a complaint, the licensee shall give the consumer the option of pursuing an identified escalation process where the decision may be examined by a suitably qualified person in the licensee's organization.

6. Where the consumer is provided with the benefit of the licensee's escalation process and where there are no further escalation processes, the licensee shall inform the consumer accordingly.

7. Where a complaint has not been resolved to the consumer's satisfaction as a result of any escalation process within thirty days of being communicated to the licensee, the licensee shall inform the consumer of his right to refer the complaint to the Authority.

8. Where the consumer is not satisfied with the resolution with his service provider under this regulation, may refer his complaint to the Authority by filling in the prescribed form specified in the Schedule.

9. The Authority shall, upon receipt of the complaint referred to it under sub regulation (8): -
    a. notify the licensee of the complaint and give him an opportunity to make a reply within fourteen days; and
    b. try to resolve the parties amicably.

10. Where the dispute is not resolved amicably between the parties, the Authority shall: -
    a. set for the date of hearing of the complaint and notify both parties; and
    b. determine the complaint within sixty days from the date of the hearing.